

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

JORGE DIAZ and BERINALDA ROSARIO

*Plaintiff designates
BRONX COUNTY
as the place of trial*

Plaintiffs

*The basis of the venue is
where the acts and events occurred*

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, NYPD POLICE
OFFICER, KHLAID ABDULLA, Shield No. 24246
JOHN DOE 1-10, JANE DOE 1-10, XYZ
CORPORATIONS

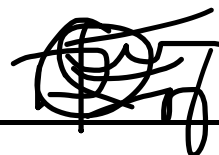
Defendants.

To the above named Defendants':

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiffs Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 21, 2021

By



LAW OFFICES OF DORCAS OWUSU-FRIMPONG
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JORGE DIAZ and
BERINALDA ROSARIO

Plaintiffs

COMPLAINT

-against-

INDEX NO.

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, NYPD POLICE
OFFICER, KHLAID ABDULLA, Shield No. 24246
JOHN DOE 1-10, JANE DOE 1-10, XYZ
CORPORATIONS

Defendants.

Plaintiffs, JORGE DIAZ & BERINALDA ROSARIO, by their attorney, under 42 U.S.C. 1983 to address their civil and legal rights, and alleges for this Complaint as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiffs, JORGE DIAZ and BERINALDA ROSARIO, seeks relief through 42 U.S.C. 1983 and 1988, and the laws of the State of New York for the violation of their civil rights protected by the Fourth and Fourteenth Amendments, and the laws of the Constitution of the State of New York.

2. The claims arise from the illegal detention of the Plaintiffs which occurred from May 4, 2020 through May 5, 2020 in which Officers of the New York City Police Department (NYPD) acting under color of state law, intentionally, and willfully subjected plaintiff to false arrest and malicious prosecution.

3. Plaintiffs seek compensatory and punitive damages, an award of costs, interest and

attorney fees, and such other and further relief this Court deems just and proper.

JURISDICTION AND VENUE

4. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, City of New York, a Notice of Claim setting forth the name and post office address of Plaintiff, the nature of the claim, the time, the place, and the manner in which the claim arose, and the items of damages claimed.

5. More than thirty days have elapsed since the respective Plaintiffs Notice of claim was served on the Defendant.

6. Venue in this District is proper in the Supreme Court of the State of New York, Bronx, New York, because the acts in question occurred in this county, and the defendants are subject to personal jurisdiction in the Supreme Court of the State of New York, Bronx, County.

PARTIES

7. At all times relevant to this action, Plaintiffs JORGE DIAZ and BERINALDA ROSARIO are residents of Bronx County, New York.

8. Defendant, CITY OF NEW YORK is and was at all relevant times herein a municipality created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers. Defendant CITY OF NEW YORK was at all times relevant herein the public employer of Defendant, Police Officer, KHLAID ABDULLA and Police Officer JOHN DOE.

9. Defendants, KHLAID ABDULLA and JOHN DOE are and were at all times relevant,

duly appointed and acting officers, servants, employees and agents of the New York City Police Department, a municipal agency of Defendant CITY OF NEW YORK. At all times relevant herein, the individual defendants were acting under color of the laws, statutes, ordinances, regulations, policies, customs and/or usages of the State of New York and the New York City Police Department, in the course and scope of their duties and functions as officers, agents, servants, and employees of Defendant CITY OF NEW YORK, were acting for, and on behalf of, and with the power and authority vested in them by the CITY OF NEW YORK and the New York City Police Department, and otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. They are sued individually and in their official capacity.

10. By conduct, acts, and omissions complained of herein, Defendants, NYPD Police Officer KHLAID ABDULLA and NYPD Police Officer JOHN DOE violated clearly established constitutional standards under the First Fourth, and Fourteenth Amendments to the United States Constitution of which a reasonable police officer under the circumstances would have known.

NOTICE OF CLAIM

11. Plaintiff timely filed a Notice of Claim with the Comptroller of the City of New York, setting forth the facts underlying Plaintiff's claim against NYPD Police Officer, KHLAID ABDULLA and NYPD Police Officer DOE and Defendant CITY OF NEW YORK.

12. The City assigned a claim to Plaintiff's Claim, and Plaintiff was subjected to an examination pursuant to N.Y. Gen. Mun. L. Sec. 50-h on November 3, 2020.

13. To date, no answer has been received by Defendants and no compensations has been offered by Defendant CITY OF NEW YORK in response to this claim.

14. This action has been commenced within one year and ninety days of the date of

occurrence of the events giving rise to this Complaint.

STATEMENT OF FACTS

15. On May 4, 2020 at approximately 11:56 AM., at or near in front of 3011 Barnes Avenue, Bronx, New York, the City of New York, its agents, employees and supervisors, and police officers, acting under color of law unlawfully imprisoned claimants.

16. Defendants herein, rear handcuffed Plaintiffs and imprisoned claimants in a Bronx County Jail. Defendants, NYPD Police Officers, KHLAID ABDULLA for a period of 24 hours pursuant to arrest number B20613093.

17. As a result of the events alleged herein, and due directly to the actions taken by the individual defendants, JORGE DIAZ and BERINALDA ROSARIO suffered and continues to suffer physical and emotional trauma, discomfort, humiliation, fear, anxiety and embarrassment, amongst other things.

DAMAGES

18. As a direct and proximate result of the defendants, Plaintiffs suffered the following injuries and damages:

- a. Violation of their Federal and New York State Constitutional right to Due Process of the Law;
- b. Violation of their Federal and New York State Constitutional right to be free from unreasonable searches and seizures;
- c. Loss of Liberty
- d. Physical pain and suffering;
- e. Physical Injuries;
- f. Emotional distress, including fear, anger, embarrassment, depression and deprivation of

liberty without probable cause.

FIRST CAUSE OF ACTION

19. The above paragraphs are hereby incorporated by reference.

20. Defendants subjected plaintiffs to false arrest, false imprisonment and deprivation of liberty without probable cause.

21. Plaintiffs were conscious of the confinement and did not consent to it.

22. The confinement of Plaintiffs was not privileged

23. Plaintiffs were damaged by their wrongful imprisonment.

SECOND CAUSE OF ACTION

(Assault Under New York State Law)

24. The above paragraphs are hereby incorporated by reference

25. Defendants made Plaintiffs fear for their physical well-being and safety and placed in apprehension of immediate harmful and/or offensive touching.

26. Defendants have deprived Plaintiffs of their civil, constitutional, statutory rights and have conspired to deprive them of such rights and are liable to Plaintiffs under common law, and the laws and Constitution of the State of New York.

27. Plaintiffs were damaged by Defendants assault.

THIRD CAUSE OF ACTION

(Respondent Superior)

28. The above paragraphs are hereby incorporated by reference

29. The Defendants tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.

30. As a result of Defendants tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiffs were damaged.

31. The City of New York is liable for the tortious acts of its employees by reason of respondent superior.

FOURTH CAUSE OF ACTION

DEPRIVATION OF RIGHTS UNDER THE FOURTH AND FOURTEENTH AMENDMENTS AND 42 U.S.C. 1983.

32. Plaintiffs re-allege and incorporate by reference the allegations set forth in each paragraph as fully set forth herein.

33. The conduct and actions of Defendants, NYPD Police Officer, KHLAID ABDULLA and NYPD Police Officer JOHN DOE, acting in concert and under color of law, in authorizing, directing and/or intentionally driving recklessly without properly securing the Plaintiffs person (no seatbelt) was excessive and unreasonable, was done intentionally, willfully, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful jurisdiction or reason, and was designed to and did cause specific and serious physical and emotional pain and suffering in violation of Plaintiffs rights as guaranteed under 42 U.S.C. 1983, and the Fourth and Fourteenth Amendments of the United States Constitution, including the right to be free from an unreasonable seizure of his person and the right to be free from the use of excessive, unreasonable and unjustified force.

34. As a direct and proximate result of the foregoing, Plaintiffs were subject to great physical and emotional pain and humiliation, was deprived of his liberty, and was otherwise damaged and injured.

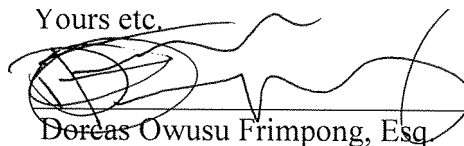
WHEREFORE, Plaintiffs respectfully request judgment against Defendants as follows:

- a. Compensatory damages in an amount to be determined at trial for each of Plaintiffs Causes of Actions.

- b. Punitive Damages in an amount to be determined at trial.
- c. An Order awarding Plaintiffs reasonable attorney fees and costs.
- d. such other further relief as the Court may deem just and proper.

Dated: Bronx, New York
July 21, 2021

Yours etc.

A handwritten signature in black ink, appearing to read 'Dorcas Owusu Frimpong', is written over a horizontal line. The signature is stylized with loops and flourishes.

Dorcas Owusu Frimpong, Esq.
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Bronx, New York 10457
718-908-2826